



Instructions for Completing the Consumer Complaint Form

Except for the name of the person your complaint is against, all information requested is voluntary, but failure to provide this information may delay or prevent the investigation of your complaint. Please provide as much information as possible about your complaint. The information on the complaint form will be used in part to determine whether a violation of law has occurred. If a violation is substantiated, the information may be transmitted to other governmental agencies, including, but not limited to, the Attorney General's Office. In completing the complaint form, please do all the following:

1. Legibly print or type all information.
 2. Fill in the full name, address, telephone number, and license number (if known) of the person your complaint is against. This information must also be included in the corresponding section of the Authorization for Release of Information form. Please note that the Medical Board (Board) only handles complaints against the listed individuals on the second page, and complaints about unlicensed practice. Please see the "[A Consumer's Guide to the Complaint Process](#)" for additional information.
 3. Attach a copy of any supporting documents you may have in your possession pertaining to your **specific** complaint; documents may include patient records, photographs, audio or video recordings, correspondence, billing statements, proof of payments, autopsy/toxicology report, police report, court documents, etc. Write your complaint in a narrative format and include details such as (dates, names, titles, specific concerns about the treatment provided, and the name(s) and contact information of any witnesses.)
 4. Sign and date the complaint form.
 5. Complete the "**Authorization for Release of Information for the Subject of the Complaint**" (**Subject** is the physician or other healthcare provider you are complaining about). This form is necessary to obtain information from the physician your complaint is about.
 6. If you were treated by another provider or received treatment at a health facility related to your complaint, complete one of the following medical release forms in their entirety:
 - "**Physician/Provider/Facility Authorization for Release of Information**" (In this form you will list all treating facilities in addition to all relevant treating providers specific to your complaint. If the incident is involving a surgical procedure, it is important that you list any pre-op or post-op providers)
 - OR-
 - "**Kaiser Authorization for Release of Information**" (should care and treatment have been rendered at a Kaiser facility please fill out the enclosed Kaiser form and check if it's a "northern" or "southern" facility)
- *** If the patient is deceased, the person signing the release form(s) must be the patient's representative as demonstrated on a durable power of attorney, death certificate, or an executor of will/estate document. (**Please include a copy of supportive documentation, including** the autopsy report or Coroner/Medical Examiner's report if applicable).

Please Note:

- You must fill out a **separate complaint form for each physician or other healthcare provider or unlicensed provider** you wish to file a complaint against.
- The Board **does not have jurisdiction over billing/fee disputes**, general business practices (contracts, office policies, appointment times/duration, etc.) or personal conflicts, unless the behavior in question interferes with the safe delivery of health care. Please contact your insurance company or your physician's or other healthcare provider's office to resolve disputes outside of the Board's jurisdiction. **The Board cannot award any kind of financial compensation.**
- Please be advised that the Board cannot assist with any coordination of patient care. Should you require assistance please contact your insurance company or medical providers.
- Review the brochure, "[A Consumer's Guide to the Complaint Process](#)", for information about the complaint review process.

For more information visit: <https://www.mbc.ca.gov/Consumers/file-a-complaint/>



Consumer Complaint Form

COMPLAINT REGISTERED AGAINST

Check one: ☐ Physician (MD) ☐ Podiatrist (DPM) ☐ Midwife
☐ Polysomnographer ☐ Unlicensed Provider

Subject Information (The person your complaint is against)

Last Name	First Name	Middle Initial	Provider's License Number
Office/Facility Name			Phone Number
Street Address			
City	State	Zip Code	

Treatment Information

Date(s) of Treatment
Reason for Treatment

Has the patient been examined/treated by another professional for this same condition? ☐ Yes* ☐ No

**If yes, complete the "Physician/Provider/Facility Authorization for Release of Information"*

Have you filed a complaint with any other agency/department? ☐ Yes* ☐ No

**If yes, please provide the name of the agency/department and provide a case number if one has been provided.*

Agency/Department Name	Case Number
------------------------	-------------

If patient is deceased, was an autopsy performed? ☐ Yes* ☐ No

**If yes, what agency performed the autopsy?*

Agency Name

PERSON MAKING COMPLAINT

Last Name	First Name	Middle Initial
Street Address		
City	State	Zip Code
Phone Number	Email Address	

PATIENT INFORMATION

Patient's Name	Patient's Date of Birth
Your Relationship to Patient	

NATURE OF COMPLAINT (Check all that apply)

- ☐ **Quality of Care**
(Misdiagnosis, treatment/medication causing side effects, surgical complications, negligent care, etc.)
- ☐ **Office Practice**
(Failure to sign death certificate, failure to provide records, misleading advertising, double billing, billing for services not rendered)
- ☐ **Inappropriate Prescribing**
- ☐ **Provider Impairment**
(Under the influence of drugs or alcohol, mental or physical impairment)
- ☐ **Sexual Misconduct**
- ☐ **Unlicensed Activity**
(Aiding and abetting unlicensed practice, unlicensed provider)
- ☐ **Other**

DETAILS OF COMPLAINT (Attach additional pages if necessary)

State your complaint in chronological order and in detail. In addition, please include dates of treatment and list all relevant treating providers specific to your complaint. It is important that you be specific regarding any allegations of substandard care. Providing a comprehensive narrative of your complaint allows for a more expeditious review process.

Signature

Date



Medical Board of California

Information Collection, Access, and Disclosure

Enforcement Program
2005 Evergreen Street, Suite 1200
Sacramento, CA 95815-5401
Phone: (916) 263-2528
Fax: (916) 263-2435
mbc.ca.gov

COLLECTION AND USE OF PERSONAL INFORMATION

The Chief of Enforcement of the Medical Board of California (Board) maintains the information you provide on this complaint form. The information is requested pursuant to Business and Professions Code sections 2220.

PROVIDING PERSONAL INFORMATION IS VOLUNTARY

All information requested is voluntary; however, failure to provide the requested information may delay or prevent the investigation of your complaint.

POSSIBLE DISCLOSURE OF PERSONAL INFORMATION

Your completed complaint form becomes the property of the Board and will be used by authorized personnel as appropriate. Information concerning your complaint may be transferred to other governmental or law enforcement agencies. This may include sharing any personal information you provide.

The information you provide may also be disclosed in the following circumstances:

- in response to a Public Records Act request, as allowed by the Information Practices Act;
- to another government agency as required or allowed by state or federal law;
- in response to a court or administrative order, a subpoena, or a search warrant.

CONTACT INFORMATION

For questions about this notice or access to your records, you may contact the Medical Board of California 2005 Evergreen Street, Suite 1200, Sacramento, CA 95815-5401-1991, (916) 263-2528 or email www.mbc.ca.gov. You have the right to review the records maintained on you by the Board unless the records are exempt by section 1798.40 of the Civil Code.



Medical Board of California

Authorization for Release of Information for the Subject of the Complaint

Enforcement Program
2005 Evergreen Street, Suite 1200
Sacramento, CA 95815-5401
Phone: (916) 263-2528
Fax: (916) 263-2435
mbc.ca.gov

CHECK ALL RECORD TYPES THAT APPLY

- | | |
|--|---|
| ☐ Medical Records | ☐ Diagnostic Images |
| ☐ HIV/AIDS | ☐ Alcohol/Drug Abuse |
| ☐ Psychiatric | |

PATIENT INFORMATION

Patient Name

Date of Birth

Date of Death (If applicable)

Medical Record Number (If known)

Control Number

Patient Name:

I, the undersigned hereby authorize:

Physician/Provider		
Street Address		
City	State	Zip Code
Phone Number	Treatment Date(s)	

to disclose medical records in the course of my diagnosis and treatment to the **Medical Board of California, Enforcement Program**, a healthcare oversight agency. This disclosure of records authorized herein is required for official use, including investigation and possible administrative and/or criminal proceedings regarding any violations of the laws of the State of California. This authorization shall remain valid for three years from the date of signature. **A copy of this authorization shall be as valid as the original.** I understand that I have the right to receive a copy of this authorization if requested by me. I understand that I have a right to revoke this authorization by sending written notification to the Medical Board of California at the above address. My written revocation will be effective upon receipt by the Medical Board of California but will not be effective to the extent that such persons have acted in reliance upon this Authorization. I understand that the recipient of my information is not a health plan or healthcare provider and the released information may no longer be protected by federal privacy regulations. I am signing this authorization voluntarily and understand that treatment, payment, or my eligibility for benefits will not be affected if I do not sign this authorization.

Patient Signature	- OR -	Date
Patient Representative Name		Relationship to Patient
Patient Representative Signature		Date

NOTE: Failure by a physician, podiatrist, or healthcare provider to provide the requested records within 15 days, or a healthcare facility within 30 days, of receipt of this request and authorization may constitute a violation of Section 2225.5 of the Medical Practice Act and may result in further action by the Board.



Physician/Provider/Facility Authorization for Release of Information

CHECK ALL RECORD TYPES THAT APPLY

- | | |
|--|---|
| ☐ Medical Records | ☐ Diagnostic Images |
| ☐ HIV/AIDS | ☐ Alcohol/Drug Abuse |
| ☐ Psychiatric | |

PATIENT INFORMATION

Patient Name

Date of Birth

Date of Death (If applicable)

Medical Record Number (If known)

Control Number

I, the undersigned hereby authorize:

Physician/Provider/Facility

Street Address

City

State

Zip Code

Phone Number

Treatment Date(s)

Physician/Provider/Facility

Street Address

City

State

Zip Code

Phone Number

Treatment Date(s)

Patient Name:

I, the undersigned hereby authorize:

Physician/Provider/Facility			
Street Address			
City		State	Zip Code
Phone Number	Treatment Date(s)		

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Patient Signature

- OR -

Date

Patient Representative Name

Relationship to Patient

Patient Representative Signature

Date

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Medical Board of California

Kaiser Authorization for Release of Information

Enforcement Program
2005 Evergreen Street, Suite 1200
Sacramento, CA 95815-5401
Phone: (916) 263-2528
Fax: (916) 263-2435
mbc.ca.gov

CHECK ALL RECORD TYPES THAT APPLY

- | | |
|--|---|
| ☐ Medical Records | ☐ Diagnostic Images |
| ☐ HIV/AIDS | ☐ Alcohol/Drug Abuse |
| ☐ Psychiatric | |

PATIENT INFORMATION

Patient Name

Date of Birth

Date of Death (If applicable)

Medical Record Number (If known)

Control Number

Patient Name:

I, the undersigned hereby authorize:

☐ Physician/Provider/Facility: Kaiser Permanente (Northern Facilities)

☐ Physician/Provider/Facility: SCPMG/Kaiser Foundation Hospital (Southern Facilities)

Treatment Date(s)

to disclose medical records in the course of my diagnosis and treatment to the **Medical Board of California, Enforcement Program**, a healthcare oversight agency. This disclosure of records authorized herein is required for official use, including investigation and possible administrative and/or criminal proceedings regarding any violations of the laws of the State of California. This authorization shall remain valid for three years from the date of signature. **A copy of this authorization shall be as valid as the original.** I understand that I have the right to receive a copy of this authorization if requested by me. I understand that I have a right to revoke this authorization by sending written notification to the Medical Board of California at the above address. My written revocation will be effective upon receipt by the Medical Board of California but will not be effective to the extent that such persons have acted in reliance upon this Authorization. I understand that the recipient of my information is not a health plan or healthcare provider and the released information may no longer be protected by federal privacy regulations. I am signing this authorization voluntarily and understand that treatment, payment, or my eligibility for benefits will not be affected if I do not sign this authorization.

Patient Signature

Date

- OR -

Patient Representative Name

Relationship to Patient

Patient Representative Signature

Date

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